

26PSCV00952 26PSCV00952

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-08-19

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C08%2F19%2F2026

Source SHA-256: 886c04e6b34b943f1d93292b33a70b79d0a5bf1dcbbc619548d68f12c75292e7

Case Number: 26PSCV00952 Hearing Date: August 19, 2026 Dept: 6

CASE

NAME: Julian

Gonzalez, a minor, by and through his Guardian Ad Litem Olivia De Leon v.

Baldwin Park Unified School District, et al.

Defendant

Baldwin Park Unified School District's Demurrer to Plaintiff's Complaint

TENTATIVE

RULING

The Court SUSTAINS Defendant Baldwin Park Unified School

District's Demurrer to Plaintiff's Complaint with 20 days' leave to amend.

Defendant Baldwin Park Unified

School District is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a public school negligence action. On March 16, 2026, plaintiff Julian Gonzalez, a minor, by and through his Guardian Ad Litem Olivia De Leon (Plaintiff) filed this action against defendants Baldwin Park Unified School District (School District), City of Baldwin Park (collectively, Defendants) and Does 1 to 50, alleging one cause of action for negligent failure to supervise. On April 24, 2026, Plaintiff dismissed Defendant City of Baldwin Park without prejudice.

On July 20, 2026, School District demurred to the Complaint. On August 10, 2026, Plaintiff opposed the Demurrer. On August 12, 2026, School District replied to the Opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*)). It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

A

demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A

demurrer can be utilized where the "face of the complaint" itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The "face of the complaint" includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 ["[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits"].)

A

demurrer can only be sustained when it disposes of an entire pleading, cause of

action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

Plaintiff's

Opposition acknowledges its untimeliness. (Opp., p. 5.) School District's Reply notes this untimeliness as well, and also indicates that Plaintiff failed to serve the Opposition on School District. (Reply, pp. 2-3.) The Court exercises its discretion to consider Plaintiff's Opposition, but admonishes Plaintiff to comply with the Code of Civil Procedure and to ensure that School District is properly served with all court-filed documents going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

"Each ground

of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." (Cal. Rules of Court, rule 3.1320, subd. (a).) School District's Demurrer fails to comply with this requirement by combining the grounds for the Demurrer into one paragraph. (Demurrer, p. 2.) The Court admonishes School District to comply with the California Rules of Court going forward.

DISCUSSION

Meet and Confer

The Court finds School District's efforts to meet and confer before bringing this Demurrer sufficient. (Downes Decl., ¶¶ 5-9; Code Civ. Proc., § 430.41, subd. (a).)

First Cause of Action – Negligent Failure to Supervise

To state a cause of action against a school district for negligent failure to supervise, the plaintiff must allege facts demonstrating that school personnel failed to "use reasonable measures to protect students from foreseeable

injury at the hands of third-parties acting negligently or intentionally.” (C.A. v. William S. Hart Union High Sch. Dist. (2012) 53 Cal.4th 861, 870.)

School District demurs

to the First Cause of Action for negligent failure to supervise based on failure to allege facts sufficient to constitute a cause of action and uncertainty. School District argues that because liability against a public entity is purely statutory, every fact material to statutory liability must be pleaded with particularity, and the Complaint instead offers only conclusory allegations of duty, breach, foreseeability, and causation. School District contends the Complaint omits material specifics, including the date of the incident, the activity involved, the location, whether it occurred during school hours, the identity of the assailant, and what School District staff did or failed to do. School District further argues that Government Code section 815.2 provides only vicarious liability and creates no direct liability, and that any implied negligent hiring or retention theory fails because no employee unfitness or prior notice is alleged. Relying on the allegation that the assault was “unexpected,” the District contends the harm was unforeseeable and asks that the demurrer be sustained without leave to amend.

In

Opposition, Plaintiff contends that a demurrer admits all properly pleaded material facts and that only ultimate facts, not evidentiary detail, need be alleged. Plaintiff argues the Complaint pleads each element — a special relationship and duty arising from the school-student relationship and Education Code section 44807, breach through the employees’ failure to act, and resulting injury — and that foreseeability, scope of employment, and causation are questions of fact not resolvable on demurrer. Plaintiff further argues that demurrers for uncertainty are disfavored and will not lie where the missing details are peculiarly within School District’s own knowledge before discovery, and that School District attacks a negligent hiring theory he never pleaded. Plaintiff proffers additional facts that can be alleged if the Demurrer is sustained, including a year-long course of bullying known to School District administrators, use of a weapon, a recording of the assault, and School District’s refusal to expel the aggressor.

In

reply, School District reiterates that claims against public entities must be pleaded with particularity and that the Complaint’s allegations of duty, breach, foreseeability, and causation remain conclusory. School District

again argues that section 815.2 provides only vicarious liability, that no underlying employee tort or employee unfitness is pleaded, and that the “unexpected” nature of the assault shows a lack of foreseeability.

The

Court finds the Complaint fails to allege sufficient facts to state a cause of action for negligent failure to supervise. The extent of the Complaint’s allegations is that Plaintiff was a student at Olive Middle School and was on school premises “when he was unexpectedly and violently physically assaulted and verbally harassed by an unidentified student while under the custody, control, and care of Defendants’ [sic] BALDWIN PARK UNIFIED SCHOOL DISTRICT...” (Compl., ¶ 12.) The Complaint fails to allege facts showing how and where this incident occurred, how it was foreseeable to School District personnel, what reasonable measures School District could have undertaken to prevent this incident, or what School District did or did not do that caused or enabled this incident. Since this is a claim against a public entity, Plaintiff must allege facts with specificity. “[I]n California all government tort liability is dependent on the existence of an authorizing statute or ‘enactment’ [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” (Searcy v. Hemet Unified Sch. Dist. (1986) 177 Cal.App.3d 792, 802.) The Court disregards School District’s negligent hiring and retention arguments, finding the Complaint does not allege any such cause of action.

Based on the foregoing, the Court SUSTAINS the Demurer to the First Cause of Action with leave to amend.

CONCLUSION

The Court SUSTAINS Defendant Baldwin Park Unified School District’s Demurrer to Plaintiff’s Complaint with 20 days’ leave to amend.

Defendant Baldwin Park Unified School District is ordered to give notice of the Court’s ruling within five calendar days of this order.